

money, though by 3 & 4 W. 4, c. 104, the real estate of all persons deceased since the 29th of August, 1833, is liable, in the hands of the heir or devisee, to the payment of debts generally, whether by specialty or simple contract (*c*).

9. **Where, notwithstanding a charge of debts, the purchaser must see to the application of his money.**—And even where the estate is subjected by the testator to a trust for payment of debts generally, the purchaser will not be indemnified by the receipt of the trustee if there be any collusion between them (*d*); or if the purchaser have notice from the intrinsic evidence of the transaction that the purchase-money is intended to be misapplied (*e*); or if a suit has been instituted which takes the administration of the estate out of the hands of the trustees (*f*); and these doctrines, it is conceived, are not affected by the clauses in Lord St. Leonards' and Lord Cranworth's Acts, [and the late Conveyancing Act] which apply only to *bond fide* payments.

10. **Purchase from trustees after a length of time.**—And if the purchaser is dealing with trustees at a great distance of time, and when the trust ought long since to have been executed, the purchaser is bound to enquire and satisfy himself to a fair and reasonable extent, that the trustees are acting in the discharge of their duty (*g*). But where *twenty-seven* years had elapsed, and the beneficiaries subject to the charge had been let into possession, and the purchaser asked if there were any debts * and the vendors declined to answer, it was held that the vendors could make a good title (*a*), and Lord Romilly observed that he had known so many cases where after distribution of the assets, debts had appeared which did not exist at the death

(*c*) Horn v. Horn, 2 S. & S. 448.

(*d*) Rogers v. Skillicorne, Amb. 189, per Lord Hardwicke; Eland v. Eland, 4 M. & Cr. 427, per Lord Cottenham.

(*e*) Watkins v. Check, 2 S. & S. 199, Eland v. Eland, 4 M. & Cr. 427, per Lord Cottenham; Burt v. Trueman, 6 Jur. N. S. 721; and see Stroughill v. Anstey, 1 De G. M. & G. 648; Colyer v. Finch, 5 H. L. Ca. 923.

(*f*) Lloyd v. Baldwin, 1 Ves. 173.

(*g*) Stroughill v. Anstey, 1 De G. M. & G. 654, per Lord St. Leonards; and see Forbes v. Peacock, 11 Sim. 502; 12 Sim. 528; 11 M. & W. 637; 1 Ph. 717; Devaynes v. Robinson, 24 Beav. 93; Sabin v. Heape, 27 Beav. 553; McNeillie v. Acton, 2 Eq. Rep. 21.

(*a*) Sabin v. Heape, 27 Beav. 553.